

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 27, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit to the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m		
1	Ong vs. Best Landscape, Inc	The motion by Jonathan D. Kintzele of Kintzele Law Group, P.C., as counsel for Plaintiff Eugene Ong is CONTINUED to October 01, 2026, at 10:00 am in Department C10. An attorney may withdraw even without cause as long as "withdrawal can be accomplished without undue prejudice to the client's interests." (<i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) It is within the court's discretion as to whether to deny an attorney's request to withdraw because such withdrawal would cause injustice or undue delay in the proceeding; however, such discretion is to be exercised reasonably. (See <i>Mandell v. Sup. Ct</i> (1977) 67 Cal.App.3d 1, 4.)

		A notice of motion and motion to be relieved as counsel under CCP section 284(2) shall be directed to the client and shall be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil form (MC-051). (<i>Cal. R. Ct. 3.1362(a).</i>) No memorandum is required for the motion. (<i>Cal. R. Ct. 3.1362(b).</i>) The motion shall be accompanied by a declaration stating in general terms, without compromising the confidentiality of the attorney-client relationship, why counsel is making a motion instead of filing a consent. (<i>Cal. R. Ct. 3.1362(c).</i>) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (<i>Cal. R. Ct. 3.1362(d).</i>) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406), the client's insistence on an action that is not justified under existing law or by good faith argument (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015), and a conflict of interest between counsel and the client (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592). Here, the motion is substantively sufficient. Counsel has provided the reason for withdrawal—a breakdown in the attorney-client relationship. However, Counsel has failed to file a proof of service, establishing that both the client and defense counsel have received notice of the motion papers. The hearing is, therefore, continued to October 01, 2026 at 10:00 am. Counsel is ordered to file a proof of service establishing that the client received proper service by mail and/or by personal service and that defense counsel has already received proper notice. Counsel is also ordered to give notice of the continued hearing.
2	Gill vs. Ortega's Moving & Delivery Service, Inc.	Counsel Sam Dehbozorgi c/o The Fullman Firm, P.C.'s motion to be relieved as counsel of record for Defendant Ortega's Moving & Delivery Service, Inc. is GRANTED. Counsel Sam Dehbozorgi is ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel– Civil (Form MC-053), that <u>includes the updated dates for the discovery motions and the Informal Discovery Conference within 10 days of this ruling</u>. (See ¶ 8 of Proposed Order).

		Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Sam Dehbozorgi is ORDERED to serve the client with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel shall be relieved as counsel of record for Defendant effective upon the filing of a proof of service to the client and all parties showing timely service of the signed Form MC-053 and notice of this ruling. The court finds that Counsel has complied with the requirements of Rule 3.1362 of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client's current address. Counsel also has declared a justifiable reason to be relieved as counsel — breakdown of the attorney-client relationship. (See Form MC-052 Attorney Decl. ¶ 2.) Further, no opposition has been filed. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. Moving Counsel shall give notice of this ruling in the manner ordered by the court.
1:30 p.m.		
1	Khoury vs. Robles	Plaintiff Melody Khoury's to compel Defendant Victor Peralta Robles to attend an oral deposition is GRANTED. To the extent Plaintiff seeks to compel Defendant Robles to produce the documents requested in the Notice of Deposition, the motion is DENIED. "Any party may obtain discovery...by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) "The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (Code Civ. Proc., § 2025.280(a).) <u>Attendance at Deposition</u> Plaintiff's motion is based on the December 16, 2025 Notice of Deposition which set Plaintiff's deposition for February 5, 2026. (Toor Decl. ¶ 7, Exh. E.) Plaintiff has adequately demonstrated that after service of the deposition notice Defendant Robles failed to appear for examination. (Toor Decl. ¶ 9.)

		Plaintiff complied with the requirement to contact Defendant Robles to inquire about his nonappearance. (Code Civ. Proc., § 2025.450(b)(2); Toor Decl. ¶¶ 11-14.) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (<i>Leko v. Cornerstone Building Inspection Service</i> (2001) 86 Cal.App.4th 1109, 1124.) Plaintiff’s counsel requested that Defendant Robles provide dates for his deposition. (Toor Decl. ¶¶ 11-1, Exhs. G-J.) Defendant Robles did not object to appearing for his deposition (Toor Decl. ¶ 8) or oppose this motion. The motion to compel Defendant Robles to appear at deposition is granted. Defendant Robles is ordered to appear for deposition at a mutually-agreeable date, time, and location. If the parties cannot agree on a date, time, and location for deposition, Defendant Robles shall appear for deposition via remote videoconference service at 9:00 a.m. on September 18, 2026. <u>Production of Documents</u> Code of Civil Procedure section 2025.450(a) provides that the moving party may seek an order compelling production of documents sought in the deposition notice, but such motion must set forth facts showing good cause justifying the production of the documents sought. (Code Civ. Proc. § 2025.450, subd. (b)(1).) A showing of “good cause” is made by declarations containing specific facts justifying inspection of the documents described in the notice. (Cal. Prac. Guide Civ. Pro. Before Trial § 8:801.2 (Rutter Group 2013).) Plaintiff did not make the required good cause showing for some of inspection demands. (Code Civ. Proc. §§ 2025(a), (b)(1).) For example, Plaintiff requested copies of Defendant Robles’s cell phone records, including times and dates of text messages, from August 8, 2024 between 10:30 a.m. and 12:30 p.m. Plaintiff has not shown good cause for this broad request. Plaintiff also failed to submit a separate statement of the matters in dispute and set forth the legal and factual reasons for why documents should be produced. (Cal. Rules of Ct. 3.1345(a)(5).) The motion is denied to the extent Plaintiff seeks to compel Defendant Robles to produce the documents sought in the deposition notice. Plaintiff to give notice.
2	Figueroa vs. Precision Castparts Corp.	Demurrer to Complaint The Demurrer to the Complaint brought by Defendant SPS Technologies, LLC, directed towards the “Second Cause of Action for Negligence Per Se” is OVERULED.

It is undisputed that “the doctrine of negligence per se is an evidentiary presumption rather than an independent right of action.” (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1286.) Additionally, it is undisputed that negligence per se need not be expressly alleged. (See Opposition: 8:13-15, citing *Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, 680; See also Reply: 3:12-16, citing *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1211.)

Further, Plaintiff concedes the second cause of action is duplicative of the first. (See Opposition: 6:14-15, 6:19-21, 7:1-2 and 7:15-17.) Defendant does not challenge the sufficiency of Plaintiff’s general negligence claim.

In sum, the parties agree on all the following: Plaintiff has sufficiently alleged a single claim for negligence and Plaintiff may proceed to invoke the doctrine of negligence per se.

Despite the parties agreeing on how this action should proceed, Plaintiff included an unnecessary “Second Cause of Action” label within his Complaint and Defendant, in turn, opted to file both a Demurrer and Motion to Strike, challenging the same.

As the parties have identified, a split in authority exists, as to whether *redundancy* is a valid basis upon which a demurrer may be sustained. (See *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135; *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 and *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858.)

In this instance, however, the Court opts to apply a different set of authorities: “It has long been established that in ruling on a demurrer, the trial court is obligated to look past the form of pleading to its substance.” (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.) “Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief.” (*Ibid.*) “The caption, title, or label of a pleading or other document does not determine its nature or legal effect.” (*Stiger v. Flippin* (2011) 201 Cal.App.4th 646, 654.)

Applying the above authorities herein, the Court will disregard the unnecessary “Second Cause of Action” title and, instead, **finds that a single claim for Negligence has been stated, which includes allegations invoking negligence per se.** As a result of the above interpretation, the Demurrer is OVERRULED.

Motion to Strike

The Motion to Strike brought by Defendant SPS Technologies, LLC is DENIED.

While the Motion to Strike notices a challenge to ¶26 through ¶29 of the Complaint, the motion offers no specific argument related thereto and,

		instead, relies on the arguments put forth in the accompanying demurrer, directed towards the “Second Cause of Action.” (See Motion: 4:21-27.) As noted by Plaintiff, “it is improper for a court to strike a whole cause of action of a pleading under Code of Civil Procedure section 436,” and consequently, this portion of the motion to strike is DENIED. (<i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1281.) Additionally, Defendant requests the Court strike the prayer “[f]or prejudgment interest as permitted by law.” (See ¶4 of Prayer.) Defendant challenges Plaintiff’s ability to recover prejudgment interest, on the basis Plaintiff’s damages do not consist of a sum certain. In making this argument, Defendant cites Civil Code section 3287; however, as noted by Plaintiff (and conceded by Defendant within the Reply), prejudgment interest remains a possibility pursuant to Civil Code section 3291. “While prejudgment interest under Civil Code section 3287 is an element of damages that must be claimed prior to entry of judgment [citation], prejudgment interest under section 3291 is not an element of damages and must be claimed by memorandum of costs under section 1034.” (<i>Jones v. John Crane, Inc.</i> (2005) 132 Cal.App.4th 990, 1012.) As the identified request for prejudgment interest is <i>not</i> an item of damage but is merely an incident to the claim which may be awarded after entry of judgment, there was no requirement that this item be pled at all, and no need for striking it. (See <i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497 [discussing analogous situation with respect to attorney’s fees.] Thus, the Motion to Strike is DENIED, in whole. Defendant shall file its Answer within 10 days of this order. Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10. Moving party shall give notice.
3	Robert Half Inc. vs. Beacon Hill Solutions Group, LLC	<u>Motion 1. Demurrer</u> Defendants Beach Hill Solutions Group, LLC, Scott Fowler, Josh Liem, Vivian Hung, Patrick Yajko, Heather White, Janet Acevedo, Abraham Klatt, Sheena Neal, and Shahed Modiri demur to the First Amended Complaint (FAC) of Plaintiff Robert Half, Inc. For the following reasons, the demurrer is OVERRULED. <u>Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A

demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).)

CUTSA Displacement

Defendants argue the third – eighth causes of action are displaced by the California Uniform Trade Secrets Act (“CUTSA”).

Like the interference claims in *Guild Mortgage*, the gravamen of Plaintiff's third, fourth, fifth, sixth, seventh, and eighth causes of action here is a coordinated scheme between Defendant Beacon Hill and Plaintiff's then-employees, including Defendant Neal, to coopt the work of Plaintiff's employees for Beacon Hill's benefit, raid branch offices of their employees, and create a coordinated effort to leave Plaintiff without the ability to service its contracts and clients. (*See* FAC ¶¶ 94-96, 99-103, 108, 198, 116-119, 121-139.) The court finds the gravamen of these claims is not the alleged misappropriation of trade secrets and, therefore, the claims are not displaced by CUTSA.

Alleged Existence of Valid Contract

Defendants demur to the first, second, and fourth causes of action, arguing the employment agreements between Plaintiff and the Individual Defendants are void *ab initio* because the contracts include unenforceable restraints on trade that permeate the agreement. (*See* Bus. & Prof. Code, § 16600(a) [providing “Except as provided in this chapter, every contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void”].)

The first cause of action alleges the Individual Defendants breached paragraphs 11 and 4 of their employment agreements with Plaintiff by, among other things, soliciting other employees to leave Plaintiff's employment and not devoting their best efforts while employed by Plaintiff for Plaintiff's benefit. (FAC ¶ 81.) The second cause of action alleges the

Individual Defendants breached the covenant of good faith and fair dealing implied in their employment contracts by resigning *en masse* with no notice and, while employed by Plaintiff, using their work time to prepare to compete with Plaintiff. (See FAC ¶ 87.) The fourth cause of action alleges Defendants Beacon Hill and Klatt induced the Individual Defendants described above. (FAC ¶ 100.)

The claims for breach of contract, breach of implied covenant, and intentional interference with contract each require Plaintiff to establish the existence of a valid contract. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811 [identifying elements for breach of contract claim]; *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 36 [identifying elements of a claim for breach of implied covenant]; *Ixchel Pharma, LLC v. Biogen* (2020) 9 Cal. 5th 1130, 1141 [identifying elements of a tortious interference claim].)

Here, the Complaint alleges breaches of provisions and covenants that do not restrain the Individual Defendants from engaging in a lawful profession, trade, or business. (See Compl. ¶¶ 81, 87, 100, Ex. A at internal ¶¶ 4, 11.) The court notes that while the Employment Contract includes a form covenant not to compete (see Compl., Ex. A at ¶ 9), that covenant *by its terms* does not apply in California. Moreover, the contracts include a severability clause that provides the court authority to sever all unenforceable provisions. (Compl., Ex. A at ¶ 19 [providing “[i]f any provision is found by any court . . . to be unreasonable and invalid, that determination shall not affect the enforceability of the other provisions”].)

Third Cause of Action (Duty of Loyalty)

Lastly, Defendants argue the third cause of action fails to state a cause of action because a claim for “breach of duty of loyalty” is not a freestanding claim outside breach of fiduciary duty.

Defendants rely on only non-binding federal authority to argue that no duty of loyalty exists for employees outside of fiduciary duties. California authority, however, is clear: “[I]t is the law in this state that ‘an employee, while employed, owes undivided loyalty to his employer.’” (*Guild Mortgage Co. LLC v. CrossCountry Mortgage LLC* (2026) 120 Cal.App.5th 885, 892 [citing among others *Huong Que, Inc. v. Luu* (2007) 150 Cal.App.4th 400 and Lab. Code, § 2863].)

For the foregoing reasons, the court will OVERRULE Defendants’ demurrer to the FAC.

No later than 10 days after service of the notice of ruling, Defendants shall file and serve an answer to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).)

Plaintiff to give notice.

Motion 2. Motion to Strike.

		Defendants Beach Hill Solutions Group, LLC, Scott Fowler, Josh Liem, Vivian Hung, Patrick Yajko, Heather White, Janet Acevedo, Abraham Klatt, Sheena Neal, and Shahed Modiri move to strike portions of the First Amended Complaint (FAC) of Plaintiff Robert Half, Inc. For the following reasons, the motion is DENIED. <u>Standard on Motions to Strike</u> California Civil Procedure Code section 436 permits a court to strike “any irrelevant, false, or improper matter inserted in any pleading” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” “Irrelevant matter” means an immaterial allegation in a pleading (Code Civ. Proc., § 431.10(c)), and includes an allegation that is not essential to the statement of a claim or defense, an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and a demand for judgment requesting relief that is not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10(b).) A motion to strike is not “a procedural ‘line item veto’ for the civil defendant.” (<i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1683.) <u>Irrelevant and Immaterial Allegations</u> Defendants move to strike various allegations in paragraphs 5, 44(a)-(h), 45 of the FAC are irrelevant and immaterial. In doing so, Defendants improperly attempt to exercise a procedural line-item veto. For this reason, the court will DENY the motion to strike portions of the FAC. No later than 10 days after service of the notice of ruling, Defendants shall file and serve an answer to the Complaint. Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10. Plaintiff to give notice.
4	Martin vs. FCA US, LLC.	Defendant FCA US, LLC moves for judgment on the pleadings as to the first, second, third, fourth, and sixth causes of action in the First Amended Complaint (“FAC”) filed by Plaintiff Virginia Martin. For the following reasons, the motion is GRANTED WITH LEAVE TO AMEND. Should Plaintiff wish to file a Second Amended Complaint consistent with this ruling, she shall do so by September 10, 2026. Defendant’s request for judicial notice of 5 Complaints filed in other lawsuits is denied. The Court need not take judicial notice of irrelevant documents and pleadings, including those that are ultimately irrelevant to the resolution of a particular dispute (<i>Licudine v. Cedars-Sinai Medical</i>

Center (2016) 3 Cal.App.5th 881, 902; *Barratt American, Inc. v. City of San Diego* (2004) 117 Cal.App.4th 809, 812, fn. 2.)

The four-year statute of limitations articulated in Commercial Code section 2725 applies to claims brought pursuant to the Song-Beverly Act. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 214-215.) Section 2725 provides, in pertinent part:

(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.

(2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered. [¶] ... [¶]

(4) This section does not alter the law on tolling of the statute of limitations nor does it apply to causes of action which have accrued before this code becomes effective.

(Com. Code, § 2725, subds. (1), (2), (4), emphasis added.) Similarly, “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years.” (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 494.)

Plaintiff entered into the relevant warranty contract on July 28, 2018. (FAC, ¶ 7.) Although not explicitly stated, the reasonable implication is that the vehicle was delivered to Plaintiff, on that same date. On demurrer or a motion for judgment on the pleadings, the Court “assume[s] the truth of all properly pleaded facts, as well as all facts that may be implied or reasonably inferred from those expressly alleged....” (*Sonoma Luxury Resort LLC v. California Regional Water Quality Control Bd.* (2023) 96 Cal.App.5th 935, 940; *Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

As the instant action was not commenced until March 27, 2025, almost seven years after delivery of the vehicle, the First through Fourth Causes of Action appear time barred, on their face.

The applicable statute of limitation permits delayed discovery and limited tolling. The FAC attempts to invoke various tolling doctrines, including the discovery rule and equitable tolling. (FAC, ¶¶46-64.)

As stated briefly above, Commercial Code section 2725, allows delayed discovery, where “a warranty explicitly extends to future performance of the goods....” (Com. Code, § 2725, subd. (2).)

“California law recognizes a general, rebuttable presumption, that plaintiffs have ‘knowledge of the wrongful cause of an injury.’ ” (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (*Grisham*).) The delayed discovery rule rebuts that presumption and tolls the statute of limitations. (*Ibid.*; See also *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.)

“In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.’ ” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Likewise, “[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) “A plaintiff who fails to sufficiently plead such facts normally should be permitted to amend his or her complaint to do so.” (*Ibid.*)

Here, the FAC alleges that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period” and that Defendant knew of the existence of such defects, prior to Plaintiff purchasing the vehicle. (FAC, ¶¶ 12, 21-25.) The implication from the above allegations, is that defects existed at the time of delivery. Because Plaintiff is presumed to have knowledge of the wrongful cause of their injury (*Grisham, supra*, 40 Cal.4th at p. 638), the applicable statute of limitations began to accrue when they received the vehicle with a defect that could not be conformed to warranty.

Thereafter, the FAC alleges that delayed discovery and/or tolling apply, in a conclusory manner. (FAC, ¶ 46 [“To the extent there are any statutes of limitation applicable to Plaintiff’s claims...the running of the limitation periods have been tolled by, *inter alia*, the following doctrines or rules: equitable tolling, the discovery rule, the fraudulent concealment rules, equitable estoppel, the repair rule, and/or class action tolling (e.g., *the American Pipe rule*).”])

Similarly, Plaintiff alleges the wrongful conduct was discovered “shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA’s unsuccessful attempts to repair them.” (FAC, ¶ 47.) This is insufficient to allege delayed discovery or tolling. Notably, the FAC does *not* allege the time and manner of discovery nor the inability to have made earlier discovery despite reasonable diligence, as required. Plaintiff alleges she took the car in for a repair around January 26, 2019 and one more time on March 6, 2021. (FAC, ¶¶ 13-14.) Plaintiff did not file this lawsuit until March 27, 2025.

Thus, the motion for judgment on the pleadings as to the First through Fourth Causes of Action is granted.

Sixth Cause of Action: Fraudulent Inducement:

The limitations period for Plaintiff's fraud cause of action is three years. (Code Civ. Proc., § 338, subdivision (d).) "The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (*Ibid.*)

As noted above, the FAC alleges Plaintiff entered into the warranty contract on July 27, 2018. (FAC, ¶ 7.) This allegation implies Plaintiff purchased the vehicle and took possession on that date. Additionally, the FAC alleges "FCA committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle equipped with the 2.4L engine was defective, and which may result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine." (FAC, ¶ 90.)

Based on the above, the alleged fraud occurred on July 27, 2018, and as noted above, Plaintiff is presumed to have knowledge of the wrongful cause of their injury. (*Grisham, supra*, 40 Cal.4th at p. 638.) As the instant action was not filed until March 27, 2025, more than six years thereafter, the claim appears barred on its face.

As noted above, while the FAC includes *general* allegations that delayed discovery applies, the same are insufficient. (FAC, ¶¶ 46-47; 50-55.) Similarly, the specific allegations included within the fraudulent inducement claim fail to plead delayed discovery. Plaintiff alleges she "could not reasonably have been expected to learn of or discover the Vehicle's Engine Defect and its potential consequences until well after Plaintiff purchased the Vehicle." (FAC, ¶ 92.) The above, however, does not allege facts which demonstrate "(1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Plaintiffs did not file an opposition to the motion and failed to address any of the arguments that Defendant makes. The failure to oppose such a motion may be construed as having abandoned the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue").) In addition, it is axiomatic that the failure to challenge a contention in a brief result in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal. App. 4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue"); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal. App. 4th 507, 529 ("failure to

		address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot”); <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal. App. 4th 1409, 1424 (issue is impliedly conceded by failing to address it).) Case Management Conference is set on December 03, 2026, at 09:00 am in Department C10. Defendant shall give notice of this ruling.
5	Tissera vs. Mann	Defendants Jeff A. Mann and Brian K. Trinidad’s motion to transfer venue to Los Angeles County is GRANTED. <u>Defective Service of Opposition</u> As a preliminary matter, the proof of service for Plaintiffs’ Opposition, dated 8/14/26, shows electronic service to Defendant Jeff Mann, in pro per, at Defendant Mann’s address, and to Defendant Brian Trinidad, in pro per, at Defendant Trinidad’s address. (See ROA 52). However, on 7/28/26, Defendant Trinidad filed a substitution of attorney, and is now represented by Michael McCarthy of Nemecek & Cole. (See ROA 45). A copy of this substitution was served to Plaintiff’s counsel on 7/28/26. (See ROA 45). Accordingly, Plaintiffs were required to serve Mr. McCarthy with the Opposition. (See Cal. R. Ct., rule 1.21 [Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented.])). The court notes that Defendant Mann filed a Reply to the Opposition on 8/17/26, and that Defendant Trinidad (represented by counsel Mr. McCarthy) filed a Notice of Joinder to Defendant Mann’s Reply on 8/20/26. Defendant Trinidad did not raise the issue of improper service in his Notice. Accordingly, the court will consider Plaintiffs’ Opposition, Defendant Mann’s Reply, and Defendant Trinidad’s Joinder. <u>Governing Authority</u> Pursuant to Code of Civil Procedure section 396b, subdivision (a), “if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof...the action may, notwithstanding, be tried in the court where commenced, unless the defendant...within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court...” “Upon hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or

proceeding transferred to the proper court.” (Code of Civil Procedure section 396b, subd. (a).)

Similarly, pursuant to Code of Civil Procedure section 397, the court may, on motion, change the place for trial “[w]hen the court designated in the complaint is not the proper court” or “[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.” (Code Civ. Proc., §397, subd. (a) and (c).)

Initially, “in the absence of an affirmative showing to the contrary, the presumption is that the county in which the title of the action shows that it is brought is, prima facie, the proper county for the commencement and trial of the action.” (*Mission Imports, Inc. v. Superior Court* (1982) 31 Cal.3d 921, 928.)

“It is a long-established rule that a motion for change of venue must satisfy two requirements: (1) It must show the action is proper in the county to which the movant seeks transfer; and (2) it must be shown the county in which the action was filed was improper under any applicable theory. [Citation.]” (*La Mirada Community Hospital v. Superior Court* (1967) 249 Cal.App.2d 39, 42; see also *Mosby v. Superior Court* (1974) 43 Cal.App.3d 219, 228 [stating “Defendants have the burden of showing that venue is proper in the county to which they seek to transfer and also showing that Shasta County is not a proper place for trial under any applicable theory.”]; *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836 [“[I]t is the moving defendant’s burden to demonstrate that the plaintiff’s venue selection is not proper under any of the statutory grounds.”]).

Proper Venue

Pursuant to Code of Civil Procedure section 395, subdivision (a), the “general rule” is that: “[e]xcept as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action... Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.” (See Code Civ. Proc. § 395, subd. (a); see also (*Fontaine, supra*, 175 Cal.App.4th at 837.)

“For venue to be proper in a county other than the county in which a defendant resides, the action must fall within a statutory exception.” (*Fontaine, supra*, 175 Cal.App.4th at 837.)

Defendants contend that venue in Orange County is improper because both Defendants reside in Los Angeles County, have resided in Los Angeles County during all relevant times, and their principal place of business is in Los Angeles County. (Decl. of Mann, ¶¶2-3; Decl. of Trinidad, ¶¶ 2-3). Defendants also contend that the legal services at issue in the Complaint were performed primarily in Los Angeles County, and that the retainer agreements were executed in Defendants’ Los Angeles office. (Decl. of Mann, ¶¶ 4-5, Decl. of Trinidad, ¶¶4-5).

Plaintiffs contend that one of the three lawsuits that Defendants litigated, which is the subject of Plaintiffs’ malpractice and other claims, was venued in Orange County and litigated in Orange County (*Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022-01258301-CU-FR-CJC).

Plaintiffs also contend that the retainer agreement was signed in Orange County. Plaintiff Franz Tissera submitted a declaration wherein he declared the following:

“In or around May 2022, I, together with my co-plaintiffs Frederick Tissera and Angela Chisholm, retained Defendant Jeff A. Mann to represent us, along with Phase9Motorsports, Inc., in *Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022 01258301-CU-FR-CJC (the “Usman action”).” (Decl. of Tissera, ¶ 4). “I recall receiving a copy of the fee agreement from Mr. Mann and taking it with me to my residence in Anaheim, Orange County, California, so that it could be signed by me and my siblings, Frederick Tissera and Angela Chisholm.” (Decl. of Tissera, ¶ 5). “On or about May 19, 2022, I signed my portion of the fee agreement in Anaheim, Orange County, California. Frederick Tissera and Angela Chisholm also signed their respective portions of the agreement in Anaheim, Orange County, California, at or around the same time.” (Decl. of Tissera, ¶ 6). “After the agreement had been signed by all three of us, I personally returned the signed copy to Mr. Mann at his law office in Los Angeles.” (Decl. of Tissera, ¶ 7). “I do not presently recall whether Mr. Mann had already signed the fee agreement before he provided it to me or whether he signed it after I returned the executed copy to his office. I do recall that the client signatures of myself, Frederick Tissera, and Angela Chisholm were placed on the agreement in Orange County before I personally returned the signed agreement to Mr. Mann.” (Decl. of Tissera, ¶ 8).

Plaintiffs cite to the portion of Code Civ. Proc. § 395, subd. (a) which provides that if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.

According to Plaintiffs, Defendants cannot establish that Orange County is an improper venue because the contracts were executed in Orange County and

one of the three lawsuits required Defendants' services to be rendered in Orange County.

In response, Defendant cites to *Cholakian & Associates v. Superior Court* (2015) 236 Cal.App.4th 361, where the court held that an action for legal malpractice, bad faith, and breach of contract is personal, transitory, and that the proper county is the county in which the defendants or some of them reside. (*Id.* at 368). *Cholakian*, however, does not explicitly address whether a cause of action for legal malpractice is within the scope of the contractual obligation exception. Neither party identifies authority that addresses this issue.

The California Supreme Court in *Dawson v. Goff* (1954) 43 Cal.2d 310 construed the contractual provision of Code Civ. Proc. § 395 to mean the following: "The section in effect says that '* * * all actions arising on contract shall be tried in the county in which the defendant resides, or in which the contract was made, exception as only applying to 'actions arising on contract.'" (*Id.* at 314 [emphasis added]).

Plaintiffs do not assert a single cause of action for breach of contract. Plaintiffs' claims are for legal malpractice, breach of fiduciary duty, conversion, declaratory relief, constructive fraud, accounting, money had and received and violation of Penal Code § 496. (See Compl.).

Furthermore, even if Plaintiffs could establish that one or more of their claims were founded on a contract, both parties agree that "[a] defendant entitled to a change of venue as to one count in a multiple count complaint is entitled to the change as to the entire action." (*Mitchell v. Superior Court* (1986) 186 Cal.App.3d 1040, 1046; see also *Gallin v. Superior Court* (1991) 230 Cal.App.3d 541, 542-544, 546 [proper county for class action complaint "for fraud, negligent misrepresentation, unfair competition ... deceptive consumer ... and breach of contract" was the defendants' county of residence]).

Not all of Plaintiffs' claims are founded on the retainer agreement. Plaintiffs allege tort claims against Defendants for constructive fraud and conversion, and violation of Penal Code § 496 on that basis that Defendants "knowingly received, withheld, and retained funds belonging to Franz that were obtained by theft, embezzlement, or other unlawful means, and did so for their own benefit and without lawful authorization. The stolen or unlawfully obtained property included, without limitation, \$97,500 in settlement proceeds wrongfully withheld in connection with the Safeco claim and \$34,500 in additional funds obtained through unauthorized credit-card and bank charges." (Compl., ¶ 106).

Plaintiffs cite to *Hale v. Bohannon* (1952) 38 Cal.2d 458 in support of their contention that Orange County is a proper venue for these claims because the court in *Hale* held that "a debt is payable at the place where the creditor resides." (*Id.* at 467). However, the cause of action at issue in *Hale* was breach of contract. (*See id.* at 466).

Plaintiffs failed to demonstrate all of their claims are subject to the contractual obligation provision within Code Civ. Proc. § 395 (a). Accordingly, because at least one or more of the claims against

		Defendants require the action to be tried in Defendants’ county of residence, the court GRANTS the motion to transfer to Los Angeles County. Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10, if all applicable fees have been paid and case transferred – hearing will be vacated. Defendants shall give notice.
6	Doe K.N. vs. Orangewood Academy	The demurrers by Defendants Cristina Alba, Charidan Jackson, and Southeastern California Conference of Seventh-Day Adventists dba Orangewood Academy (“SCC”) are OVERRULED as to the third cause of action for intentional infliction of emotion distress of the second amended complaint by Plaintiff Jane Doe K.N. The demurrer by SCC to the fifth cause of action for negligent hiring, retention, and supervision of the second amended complaint is SUSTAINED with 20 days leave to amend. <u>DEMURRER</u> The elements of a cause of action for IIED are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant’s extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress. [Citation.] [¶] A defendant’s conduct is considered to be outrageous if it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citations.]” (<i>Crouch v. Trinity Christian Center of Santa Ana, Inc.</i> (2019) 39 Cal.App.5th 995, 1007.) Defendant argues that Plaintiff has failed to sufficiently plead severe emotional distress. Plaintiff details the alleged conduct that caused Plaintiff IIED by each moving defendant: • “32. DEFENDANT CRISTINA M. ALBA’s choice to give plaintiff a failing grade despite plaintiff acing her final examination, refusing to change the grade despite plaintiff and her parents raising such concerns to Defendant ALBA, interfering with Plaintiff’s college scholarship eligibility were all retaliatory acts taken against plaintiff for reporting DEFENDANT MORGAN, calling minor plaintiff a liar to third parties after disclosing the sexual assault and battery done by school principal DEFENDANT MORGAN, and stating ORANGEWOOD ACADEMY would not do anything about her reports of sexual assault and battery was extreme and outrageous conduct. It is the totality of this defendant’s actions that arise to extreme and outrageous conduct, to protect Defendant Morgan by using their limited power in the classroom to retaliate against plaintiff.” (SAC, ¶ 32).

- “33. DEFENDANT CHARIDAN JACKSON’s choice to give plaintiff a failing grade despite plaintiff acing her final examination, refusing to change the grade despite plaintiff and her parents raising such concerns to Defendant JACKSON, interfering with Plaintiff’s college scholarship eligibility were all retaliatory acts taken against plaintiff for reporting DEFENDANT MORGAN, calling minor plaintiff a liar to third parties after disclosing the sexual assault and battery done by school principal DEFENDANT MORGAN, shaking her head in disagreement and rolling her eyes during Jane Doe’s statement at the board meeting, in addition to not submitting the final grade that Jane Doe earned, was extreme and outrageous conduct. It is the totality of this defendant’s actions that arise to extreme and outrageous conduct, to protect Defendant Morgan by using their limited power in the classroom to retaliate against plaintiff.” (SAC, ¶ 33).
- “36. Defendant DOE 1’s refusal to intervene and take action after Plaintiff reported Defendant MORGAN’s conduct constitutes as extreme and outrageous conduct, including but not limited to failing to comply with its mandatory reporter obligations and reporting Defendant MORGAN to law enforcement.” (SAC, ¶ 36).
- “37. Defendant DOE 1’s to intervene and take action after Plaintiff reported Defendant ALBA and JACKSON’s conduct constitutes as extreme and outrageous conduct.” (SAC, ¶ 37).

As to the conduct of the Individual Defendants, the court finds that Plaintiff’s allegations are sufficient to allege a cause of action for IIED. “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (McDaniel v. Gile (1991) 230 Cal.App.3d 363, 372). Here, Plaintiff alleges that Plaintiff reported that the school’s principal had sexually assaulted her, Alba and Jackson retaliated by falsifying Plaintiff’s grade despite Plaintiff having earned an A on her final exam but entering a zero, refused to correct the false grade even after Plaintiff and her parents raised the discrepancy directly with her. Plaintiff also alleges that this action deliberately interfered with Plaintiff’s merit-based college scholarship eligibility. Defendant Jackson then told other faculty members Plaintiff was a liar and created social isolation for Plaintiff at school. A trier of fact could reasonably infer that such conduct was an abuse of Alba and Jackson’s position, used to damage Plaintiff’s interest, that Plaintiff was susceptible to mental distress and that social isolation and the loss of a merit-based college scholarship would cause mental distress to a teenager.

As to defendant SCC, as the court previously found, Plaintiff's allegations against Morgan were sufficient to constitute sexual assault, sexual battery, and/or battery. What constitutes reasonable suspicion and whether or not SCC breached its duty to investigate, take Plaintiff's allegations seriously, and/or reprimand/terminate Morgan is a question of fact that cannot be decided on demurrer. "Those allegations and facts reasonably inferred from them are sufficient to impose vicarious liability against [SCC] for [Morgan's] conduct. Under the respondeat superior doctrine, an employer is liable for the torts of its employees committed within the scope of employment." (*Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1011). Further, where an entity acts recklessly with the intent to harm a minor so that the minor would not report to the police or news media, that raises sufficient questions of fact to constitute IIED. (*Id.* at 1011). Here, Plaintiff reported an incident that, if proven true, would foreseeably cause Plaintiff, a teenage minor, mental distress. SCC's conduct, which favored the interest of Morgan and abandoned Plaintiff's could be inferred by a jury to be outrageous conduct.

Defendants' reliance on *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55 is misplaced. In *Janken*, the court first discussed the difference between harassment claims under FEHA and age discrimination claims under FEHA. (*Id.* at 64). Harassment claims are based on a type of conduct that is avoidable and unnecessary to job performance. (*Id.*) Discrimination claims, by contrast, arise out of the performance of necessary personnel management duties. (*Id.* at 63.) As such, "[m]aking a personnel decision is conduct of a type fundamentally different from the type of conduct that constitutes harassment. Harassment claims are based on a type of conduct that is avoidable and unnecessary to job performance." (*Id.* at 64). "[C]ommonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment." (*Id.* at 64-65). Based on this reasoning, the court held that managing personnel that may result in age discrimination "is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society." (*Id.* at 80).

The narrow reasoning in *Janken* does not apply here. The conduct alleged is not purely managerial personnel decisions that may result in discrimination. Rather, here, the conduct alleged involved falsifying grades, preventing Plaintiff from obtaining a merit-scholarship, mocking Plaintiff, and being a participant creating social isolation for Plaintiff go beyond mere personnel decisions.

The demurrers to the third cause of action are OVERRULED.

Fifth Cause of Action for Negligent Hiring, Retention, or Supervision—
SCC Only

		The theory of negligent supervision may be applied to impose liability on a religious organization for childhood sexual abuse, assuming that the general requirements for this cause of action are met. (<i>Mark K. v. Roman Catholic Archbishop</i> (1998) 67 Cal.App.4th 603.) Negligence liability will be imposed on an employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. (<i>Brown v. USA Taekwondo</i> (2019) 40 Cal. App. 5th 1077.) Defendant SCC argues that the SAC is silent as to the notice and timeline of the allegations that defendants Morgan, Alba, and/or Jackson were unfit or incompetent prior to being hired by SCC. Defendant further argues that the SAC does not allege that SCC had any prior knowledge of the employee's unfitness. (See <i>Z.V. v. County of Riverside</i> (2015) 238 Cal. App. 4th 889, 902 ("To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act.")) The court agrees that the SAC does not cure these defects. It is unclear when the complaints were made and whether or not the cause of action is based on negligent retention only (i.e., retaining Morgan, Alba, and Jackson after complaints were made) and/or whether or not the cause of action encompasses negligent hiring (to which extent, the allegations are unclear that Defendant had knowledge of any complaints prior to hiring. As such, Plaintiff fails to allege, at what time Defendant Morgan, Alba, and Jackson allegedly became incompetent/unfit, whether or not that time period occurred before or after Plaintiff's claimed harm, and when/what particular risk or hazard and/or particular harm materialized. For this reason, the demurrer is SUSTAINED with 20 days leave to amend as to the fifth cause of action as against SCC. Moving Defendants to give notice.
7	Corey vs. The Regents of the University of California	Defendants Regents of the University of California and Angela Myer, M.D. demur and move to strike portions of the First Amended Complaint filed by Plaintiff Jacie Ruelas Corey. For the following reasons, the demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff shall file her Second Amended Complaint by September 10, 2026. In light of this ruling, Defendants' motion to strike is rendered moot. On February 2, 2026, Plaintiff filed a document entitled "Amended Complaint [¶] My First Amended Complaint." However, this First Amended Complaint does not assert any causes of action. CRC Rule 2.112 requires:

Each separately stated cause of action, count, or defense must specifically state:

- (1) Its number (e.g., “first cause of action”);
- (2) Its nature (e.g., “for fraud”);
- (3) The party asserting it if more than one party is represented on the pleading (e.g., “by plaintiff Jones”); and
- (4) The party or parties to whom it is directed (e.g., “against defendant Smith”).

Failure to comply with CRC Rule 2.112 renders a complaint subject to special demurrer for uncertainty. (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014 [“failure to comply with rule 2.112 presumably renders a complaint subject to a motion to strike (Code of Civ. Proc., § 436), or a special demurrer for uncertainty.”].)

Plaintiff’s First Amended Complaint contains an attachment stating that Plaintiff amends certain allegations, but “all other allegations remain the same.” However, an “amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131.)

The original complaint ceases to have any effect and Plaintiff cannot rely on the allegations of the original complaint to assert a viable cause of action in the First Amended Complaint. Further, the First Amended Complaint does not assert any viable cause of action against Defendants.

Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10.

Defendants shall give notice of this ruling.